

EXPULSION BY SCHOOL BOARD

This regulation supports the implementation of Policy 8220, Student Disciplinary Sanctions, by setting forth the procedures by which a student may be expelled from Loudoun County Public Schools (LCPS) by the School Board or the Student Behavior and Accountability Committee (SBAC), a three-member committee thereof, as applicable.

Any student subject to expulsion has the right to due process and to fair procedures in determining facts and imposing sanctions.

A. Recommendation for Expulsion. The Superintendent or OSA hearing officer, who serves as the Superintendent's designee in matters pertaining to student discipline, may recommend the expulsion of a student in accordance with the procedures set forth in Section D of Regulation 8220.1, Implementing Student Disciplinary Sanctions.

1. In accordance with Va. Code § 22.1-277.06, such recommendation for expulsion for prohibited conduct not involving certain drug offenses¹ or a Category A Weapon² shall be based on consideration of the following factors: (i) the nature and seriousness of the conduct; (ii) the degree of danger to the school community; (iii) the student's disciplinary history, including the seriousness and number of previous infractions; (iv) the appropriateness and availability of an alternative education placement or program; (v) the student's age and grade level; (vi) the results of any mental health, substance abuse or special education assessments; (vii) the student's attendance and academic records; and (viii) other appropriate matters.

- a. No decision to expel a student shall be reversed on the grounds that such factors were not considered.
- b. Consideration of these factors by the Superintendent or OSA hearing officer does not preclude the School Board or SBAC from considering any of the factors as "special circumstances."

2. When forwarding a recommendation for expulsion to SBAC, the OSA hearing officer, at their sole discretion, may also offer the parent(s)/guardian(s) or the adult student a letter of agreement. If the letter of agreement is signed by the parent(s)/guardian(s) or adult student and thereafter accepted by SBAC, then, as set forth in the agreement, the student is assigned to an alternative education program during the term of the expulsion, and the student's case is concluded without a further hearing.

¹ Specifically, bringing (not merely possessing, using, or being under the influence) a controlled substance, imitation controlled substance, or marijuana onto LCPS property or to an LCPS-sponsored activity.

² Category A Weapons are defined in School Board Policy 8235, Weapons.

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B. Confirmation or Disapproval of Expulsion Recommendation. An expulsion recommendation must be confirmed or disapproved by SBAC in accordance with Policy 8230, Procedures for Student Disciplinary Appeals to School Board.

1. Appeal of Expulsion Recommendation. Any student for whom OSA hearing officer has recommended expulsion has the right to a hearing before SBAC. Such hearing will be scheduled upon receipt of a written appeal by the parent(s)/guardian(s) or the adult student and shall proceed in accordance with Policy 8230, which provides for the hearing and notice thereof; notice of SBAC's decision; and an appeal of SBAC's non-unanimous decision, if applicable.

2. Unappealed Expulsion Recommendation. In instances where no appeal is made, upon closure of the appeal period, SBAC will consider and confirm or disapprove the expulsion recommendation in accordance with Section G of Policy 8230.

C. Assignment to Alternative Education Program. SBAC or the School Board, as applicable, may permit or require an expelled student to attend an LCPS alternative education program for the term of the expulsion.

D. Category A Weapon Offense(s). SBAC or the School Board, as applicable, shall expel from school attendance for a period of not less than one year any student determined to have possessed a Category A Weapon on school property or at a school-sponsored activity as prohibited by Va. Code § 18.2-308.1. The School Board or SBAC may, however, determine, based on the facts of a particular situation, that special circumstances exist and no disciplinary sanction, another disciplinary sanction or another term of expulsion is appropriate. Furthermore, the School Board authorizes the Superintendent or the OSA hearing officer to conduct a preliminary review of such cases to determine whether a disciplinary sanction other than expulsion is appropriate.

1. The provisions of this section do not apply to any situation involving a Category A Weapon that is set forth in Section F. of Policy 8235, Weapons.

2. Nothing in this section shall be construed to require a student's expulsion regardless of the facts of the particular situation.

E. Certain Drug Offense(s). SBAC or the School Board, as applicable, shall expel from school attendance any student determined to have brought a controlled substance, imitation controlled substance or marijuana, as those terms are defined in Va. Code § 18.2-247, onto LCPS property or to an LCPS-sponsored activity.

1. SBAC or the School Board, as applicable, may, however, determine, based on the facts of a particular situation, that special circumstances exist and no disciplinary sanction, another disciplinary sanction or another term of expulsion is appropriate.

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2. Furthermore, the School Board authorizes the Superintendent, OSA hearing officer, or a school administrator to conduct a preliminary review of such cases to determine whether a disciplinary sanction other than expulsion is appropriate.

3. Nothing in this section shall be construed to require a student's expulsion regardless of the facts of the particular situation.

F. Special Education. The imposition of any discipline sanction upon a student with an Individual Education Program (IEP) or Section 504 Plan shall be done in accordance with Regulation 8220.3, Disciplinary Procedures for Students with Disabilities. Nothing herein proscribes the rights of students with disabilities to receive educational services from LCPS under applicable federal and state regulations pertaining to the education of students with disabilities.

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Leg. Refs: Virginia Code §§ [18.2-308](#), [18.2-308.1](#), [18.2-247](#), [22.1-131.1](#), [22.1-277.06](#); [22.1-277.07](#), [22.1-277.08](#); [8VAC20-81-160](#); [Individuals with Disabilities Education Act](#), [Section 504 of the Rehabilitation Act of 1973](#), [Americans with Disabilities Act](#)

Cross Refs: [Policy 8220](#), Student Disciplinary Sanctions; [Policy 8230](#), Procedures for Student Disciplinary Appeals to School Board; [Policy 8235](#), Weapons; [Policy 8240](#), Alcohol, Drug, Tobacco and Electronic Cigarettes; Regulation 8220.1, Implementing Student Disciplinary Sanctions; [Regulation 8220.3](#), Disciplinary Procedures for Students with Disabilities